

25TRCV00793 25TRCV00793

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV00793 Hearing Date: September 3, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Thursday,
September 3, 2026

Department M Calendar No.

PROCEEDINGS

Freddy Venegas Perez, et al. v. American Honda Motor
Co., Inc., et al.

25TRCV00793

1. Freddy

Venegas Perez's Motion to Compel Further Responses to Request for Production of
Documents

TENTATIVE RULING

Freddy

Venegas Perez's Motion to Compel Further Responses to Request for Production of
Documents is denied, in part, and granted, in part.

Background

Plaintiffs filed the Complaint on March 1, 2025. Plaintiffs

allege the following facts. This is an action under the Song-Beverly Act.

Motion to Compel Further Responses to Requests for Production of Documents

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiff set forth a meet and confer declaration in substantial compliance with CCP § 2031.310(b)(2). (Declaration, Ezra Ryu, ¶¶ 5-10).

Motion to Compel

Plaintiff seeks further responses to Request for Production of Documents (“RFP” or “Request[s]”) Nos. 9, 17, 53, 54, 59, 61, and 62. The parties did not conduct an informal discovery conference and the IDC was recently vacated.

A party responding to an

inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. Code Civ. Proc., § 2031.210, subd. (a.) CCP § 2031.230 states: "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item."

Request 9 states: "All recall DOCUMENTS regarding, pertaining, or relating to the SUBJECT VEHICLE, including but not limited to, service bulletins and/or technical service bulletins."

Request 17 states: "All DOCUMENTS to include but not limited to manuals, publications, directives and direct dealer notifications or advisements regarding, pertaining, or relating to handling warranty repairs on the SUBJECT VEHICLE."

Request 54 states: "A copy of the Workshop Manual specifying diagnosis and repair procedures for vehicles of the same year, make, and model as the SUBJECT VEHICLE."

As to Requests 9, 17, and 54, the motion is denied. Defendant imposed objections, but, thereafter, served a substantive response and also stated that documents will be produced. To the extent that Plaintiff is seeking documents beyond what was produced, Plaintiff fails to demonstrate that Defendant's responses were insufficient. It appears that Plaintiff is seeking broader and sweeping responses encompassing all aspects of the vehicle rather than defects that are related to the specific non-conformities of Plaintiff's vehicle. To the extent that Plaintiff is seeking such information, the requests are overly broad.

As to Request 53, the motion

is denied. Plaintiff's separate statement is defective.

Cal. Rules of Court, Rule
3.1345(c)(1) states:

"A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

(1)
The text
of the request, interrogatory, question, or inspection demand[.]"

Plaintiff failed to include
the text of the inspection demand.

As to Request 59, the motion
is denied.

Request 59 states: "All
training manuals and/or other DOCUMENTS relating to the training given to YOUR
employees, agents, and representatives in connection with handling consumer
lemon law repurchase requests, since the date of the SUBJECT VEHICLE production
to the present"

Defendant's response
adequately complies with CCP § 2031.230. Defendant states: "Subject to and
without waiving these objections, assuming this request is not directed to
attorney-client communications, AHM is unable to comply with this request. AHM
had made a diligent search and reasonable inquiry in an effort to comply with
this request and has no documents responsive to this request and no responsive
documents have ever existed." Further, the Court notes that the request is
overly broad.

As to Requests 61 and 62,
the motion is granted.

Request 61 seeks: "All
DOCUMENTS reflecting YOUR plans, policies, procedures, programs, or measures
for achieving any of YOUR warranty buyback reduction goals, since the date of
the SUBJECT VEHICLE production to the present."

Request 62 seeks: "All
DOCUMENTS from the date of vehicle production to the present related to YOUR
goals to reduce the costs associated with repurchases or replacements,
including all warranty trend reports for this period."

The requests seek documents
that may lead to the discovery of admissible evidence. The buyback process
under the warranty and whether Defendant has a policy to reduce costs related
to repurchases and replacements are issues at the heart of this litigation.

Defendant is ordered to
serve further responses to Requests 61 and 62 within 20 days of this date.

Plaintiff is ordered to give notice of this ruling.